

After *SFFA v. Harvard*: Predictions that Didn't Come True

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A landmark 29 June 2023 U.S. Supreme Court decision (*SFFA v. Harvard*) held that race-based admissions at colleges and universities were unconstitutional. During the case, elite schools made predictions about what would happen if SFFA were to win (as it went on to do). Thirty-three selective schools predicted Black enrollment declines of 50 to 70 percent. Harvard's expert witness, David Card, estimated that eliminating racial preferences would cut the Black share of Harvard's admitted class from 14 percent to 6 percent. Years have passed since the 2023 Supreme Court decision. Here, I test the predictions using Common Data Set and IPEDS records assembled for sixty-three selective institutions through fall 2025. Once the incompatible definitions of population and race underlying the litigation figures are reconciled, I find that: (1) Average Black enrollment among the 33 colleges exceeds its pre-litigation benchmark. (2) Black enrollment at the research universities is essentially unchanged. (3) Harvard's Black enrollment matches its 2010-2015 level. The results raise the issue: Does abiding by the decision not have the predicted effect, or are the schools not abiding by the decision?

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The Supreme Court's decision in *Students for Fair Admissions v. Harvard* (600 U.S. 181, decided June 29, 2023) prohibited the consideration of race in college admissions. During the litigation, the affected institutions committed themselves to forecasts as to what such a prohibition would do. A coalition of 33 selective colleges filed an amicus brief insisting that Black enrollment would fall by 50 to 70 percent (Amherst Brief 2022, 13-14). Harvard expert David Card simulated race-blind admission for the Class of 2019 and reported that the Black share of admitted students would fall from 14 percent to 6 percent (Card 2017, 103).

Enrollment records for the first two admissions cycles conducted under the new legal regime, the entering classes of fall 2024 and fall 2025, are now available. These forecasts can therefore

be evaluated against realized outcomes, a test that, to my knowledge, no published study has yet performed.

The evaluation is less straightforward than it appears. The only publicly available enrollment statistics come from the Common Data Set (CDS), a standardized annual disclosure filed by nearly every selective college, and from the federal IPEDS Fall Enrollment survey. Card's figures were computed on a different population (admitted rather than enrolled students, domestic applicants only) under a different racial classification scheme (Harvard's internal coding, which assigns multiracial applicants to single categories). The same student body therefore carries two Black shares that differ by roughly a factor of two depending on which convention is applied. Once the expert-report metric and the federal metric are placed on a common basis, Harvard's post-ruling classes are indistinguishable from the classes it enrolled while practicing the admissions system it had prior to the decision.

The paper's primary conclusion is that elite institutions enroll classes whose racial composition is essentially unchanged by *SFFA*, a stability their own litigation forecasts said race-neutral admissions could not produce. I support this conclusion with several bodies of evidence.

- Mean Black enrollment across the 33 amici colleges is above, not below, its pre-litigation benchmark.
- Mean Black enrollment at the 15 research universities that told the Court race-neutral admissions would undercut their diversity moved from 7.4 to 7.2 percent of US first-years, and six of the fifteen enroll more Black students, relative to class size, than before.
- The ratio of Asian to Black first-year students across the 47 top-ranked institutions has moved a small fraction of the distance toward the levels observed at universities bound by California's Proposition 209, the closest available approximation to a race-blind benchmark.
- Black enrollment at Harvard, correctly converted, sits at its 2010-2015 level.

These results raise the issue: Does abiding by the decision not have the predicted effect, or are the schools not abiding by the decision?

The paper also raises concerns about the role of economic expertise. Card's report was produced for litigation and stated its predictions in units that correspond to no publicly reported statistic. The analyses on the plaintiff's side did enter scholarly journals (Arcidiacono, Kinsler, and Ransom 2022a, 2022b), but the defense simulation by Card that became the public reference point did not, and no mapping between its conventions and the CDS categories has previously been published. Sixteen prominent economists—George A. Akerlof, Sandy Baum, Rebecca M. Blank, Hilary Hoynes, Guido W. Imbens, Kirabo Jackson, Rucker Johnson, Helen F. Ladd, David S. Lee, Trevon D. Logan, Michael McPherson, Jesse Rothstein, Robert M. Solow, Sarah Turner, Ebonya Washington, and Douglas Webber—three of them Nobel laureates, nonetheless attested to the Court that the analysis was methodologically sound (Economics Professors Brief 2022). The most widely cited prediction in the case is one that the public record cannot

check. Institutions with an interest in appearing compliant benefit from the resulting ambiguity. Harvard’s own use of this ambiguity in its post-ruling disclosures is documented below. The conversion that I develop here may help in mitigating the ambiguity.

Related Literature

A substantial empirical literature, extending back three decades, estimates the magnitude of racial preferences at selective institutions, and its results are consistent enough to summarize briefly. William G. Bowen and Derek Bok, in work first published in 1998, calculated from the 1989 entering cohort of the College and Beyond schools that race-neutral admission would have reduced the Black share of matriculants from 7.1 percent to between 2.1 and 3.6 percent (Bowen and Bok 2018, 39). Espenshade and Chung (2005), simulating admissions at three elite private universities from 1997 application records, found that eliminating racial preferences would cut the acceptance rate of Black candidates from 33.7 to 12.2 percent, reduce the Black share of the admitted class from 9.0 to 3.3 percent, and leave Asian applicants filling nearly four of every five vacated seats. Arcidiacono and Lovenheim (2016) survey the broader literature and report similar effect sizes wherever selective admissions are modeled. These simulations are the direct intellectual ancestors of the forecasts the amici colleges placed before the Supreme Court.

The SFFA litigation itself generated the most detailed estimates in the literature, because discovery gave the experts on both sides access to complete applicant-level records. From the Harvard and UNC data, Peter Arcidiacono, Josh Kinsler, and Tyler Ransom published three peer-reviewed studies. They found that the typical Black admit to Harvard would have faced an admission rate roughly four times lower had the identical application been evaluated as White, with preferences largest for applicants from advantaged backgrounds (Arcidiacono, Kinsler, and Ransom 2023), that Asian American applicants faced a penalty relative to observably similar White applicants (Arcidiacono, Kinsler, and Ransom 2022a), and that preferences for legacies and athletes flowed overwhelmingly to White applicants (Arcidiacono, Kinsler, and Ransom 2022b). Card’s simulated decline from 14 to 6 percent, described in the next section, is the defense counterpart of these estimates. The two sides disputed modeling choices at length, but no expert in the case produced a model in which removing racial preferences left the racial composition of the class approximately unchanged.

A complementary quasi-experimental literature studies what happens when selective institutions actually stop considering race. California’s Proposition 209 is the cleanest case. Bleemer (2022) links every University of California applicant from 1994 through 2002 to later educational and labor-market records and shows that the ban produced immediate, large declines in underrepresented minority enrollment at the most selective campuses, cascading those applicants into less selective institutions and lowering their subsequent wages. Hinrichs (2012) finds in national data that statewide bans leave aggregate minority enrollment roughly unchanged while reducing it sharply at the most selective institutions, the segment occupied by every school studied here. These episodes supply an empirical benchmark. Where race-conscious

admission genuinely ends at a highly selective institution, the compositional change is large and immediate.

The stakes of the compositional question are documented by Chetty, Deming, and Friedman (2026), who estimate the causal effect of attending an Ivy-Plus college on reaching the top of the income distribution and on entry into leadership positions. Their subject is the consequence of admission rather than its determinants, but their findings explain why the demographics of a few dozen institutions enrolling a fraction of one percent of American undergraduates command the attention they do. The first post-ruling cycle has begun to attract systematic study. Bloem et al. (2026) link national testing cohorts to fall 2024 enrollment records and document underrepresented minority enrollees cascading down the selectivity distribution in the ruling's first year. Their estimates are measured against the fall 2021-2023 entering classes, the elevated post-2020 cohorts examined below. Measured against the 2010-2015 litigation-era baseline, the same institutions show the stability documented in this paper. What no part of this literature yet contains is a comparison of the *SFFA* predictions with realized post-ruling enrollment, stated in the units in which the predictions were issued and measured against the baseline the predictions themselves referenced. The prediction side of the record closed in 2023. The outcome side, now two entering classes deep, sits in public filings, and the remainder of this paper performs the comparison.

The Litigation Forecasts

Card's report, filed December 15, 2017, estimated admissions models on Harvard's internal records for applicants to the Classes of 2014 through 2019 and then simulated the Class of 2019 admissions cycle with the race coefficients set to zero:

In my simulation, the share of African-American students in the admitted class would drop from 14% to 6%. The fraction of Hispanic or Other students would fall from 14% to 9%. The fraction of admitted students who are Asian-American would rise from 24% to 27%. And the fraction of admitted students who are White would rise from 40% to 48%. (Card 2017, 103)

The simulation's baseline of 14 percent has a specific and unfamiliar meaning. Card's sample contains the 1,679 admitted students to the Class of 2019 who appear in his preferred regression model, and 234 of them, or 14 percent, are recorded as African American (Card 2017, 125). Three restrictions separate this population from anything in a public filing. It counts admitted students rather than enrolled ones. It is limited to domestic applicants, defined as citizens and permanent residents, a restriction that runs throughout the report (Card 2017, nn. 6, 8). And it classifies race using Harvard's internal scheme, which assigns an applicant marking more than one race to a single category, so Card's Black count is broader than the single-race Black line in a federal filing. Harvard admitted roughly 2,000 students in the cycle, and the several hundred missing from the sample are internationals and applicants outside the regression model. None of this makes the sample unusable as a baseline. The conversion developed below does

not require Card’s sample to match the enrolled class member for member, only that the relationship between his population and the enrolled class be stable, an assumption that cannot be verified from public data and whose plausible failures, examined below, mostly run against the paper’s conclusion.

Two amicus briefs, both filed August 1, 2022, carried versions of these forecasts to the Supreme Court, and their quantitative commitments differ markedly. The first came from fifteen research universities (Brown, Caltech, Carnegie Mellon, Columbia, Cornell, Dartmouth, Duke, Emory, Johns Hopkins, Princeton, Penn, the University of Chicago, Vanderbilt, Washington University in St. Louis, and Yale), a group that includes neither Harvard nor any signatory of the second brief. Its one explicit number is Harvard-specific: the trial record showed that the race-neutral alternatives proposed by the petitioner “would lead to a near 33% reduction in the number of African American students admitted” at Harvard (Universities Brief 2022, 25, quoting the district court’s findings). The finding the brief quotes summarizes the race-neutral simulations offered by the petitioner’s expert, under which African American representation in Harvard’s incoming class “would fall nearly one-third to approximately 10% of the class” (*SFFA v. Harvard*, 397 F. Supp. 3d at 178-84). The 33 percent figure is smaller than Card’s 57 percent relative decline because it describes a different counterfactual, the petitioner’s proposed alternatives with their compensating policy changes, rather than the removal of race with nothing else altered. Both figures rest on the same underlying applicant data. Regarding their own campuses, the fifteen universities made no numerical forecast. Their claims were qualitative but unambiguous in direction: exclusively race-neutral admissions “would undercut Amici’s efforts to attain ‘the benefits of diversity’ they seek,” and “no race-neutral alternative presently can fully replace race-conscious individualized and holistic review” (Universities Brief 2022, 25, 31). The brief thus committed its signatories to the proposition that compliance with the petitioner’s requested rule would visibly reduce racial diversity at their own institutions.

The second brief, organized by Amherst and joined by thirty-two other colleges and universities, made the broadest quantitative claims in the record:

Black enrollment would likely decline between 50% and 70%; the probability of Black applicants receiving offers of admission would drop to half that of white students; and the percentage of Black students matriculating would drop from roughly 7.1% of the student body to 2.1%. Strictly enforced, a ‘do not consider race’ policy would ‘presumably take [B]lack enrollments . . . back to early 1960s levels, before colleges and universities began to make serious efforts to recruit minority students.’ (Amherst Brief 2022, 13-14)

The brief’s footnote for the entire quoted passage is Bowen and Bok (2018, 39), whose simulations on the 1989 entering cohort of the College and Beyond institutions had Black matriculants falling from 7.1 percent to between 2.1 and 3.6 percent, declines of 49 to 70 percent. The interval, the halved admission probability, and the 7.1-to-2.1 endpoints are therefore one simulation, run on a cohort that entered college a third of a century before the ruling. A separate footnote attaches Grodsky and Kurlaender (2006, 7-10) to the preceding sentence’s general claim of a

“drastic resegregating impact.” The single contemporary, institution-specific estimate in the brief is attributed to Amherst’s internal planning: an entirely race-blind policy would reduce the college’s combined Native American, Black, and Hispanic enrollment “by approximately half” (Amherst Brief 2022, 14). The supporting footnote supplies neither a document, a date, nor a cohort, noting only that the underlying studies formed part of the periodic review of admissions policy that *Grutter v. Bollinger* requires of institutions using racial preferences. The amici therefore left no single well-specified counterfactual, and I evaluate their forecast as a proportional claim against several candidate baselines below.

The economics profession participated in the litigation directly, on both sides. A group of economists filed in support of the petitioner attacking the lower courts’ reliance on Card’s model (Economists Brief 2022). Sixteen economists and statisticians answered in support of Harvard, among them three Nobel laureates, George Akerlof, Robert Solow, and Guido Imbens, the last a co-recipient of the 2021 prize that Card shared. Their brief attested that Card “is one of the most outstanding and respected scholars in the field of econometrics and applied economics,” that “his statistical analyses in this case were methodologically sound,” and that “the criticisms of the lower courts’ consideration of Dr. Card’s analyses in the Brief of Economists as Amici Curiae in Support of Petitioner . . . are not credible” (Economics Professors Brief 2022, 1-2). Prominent economists endorsed Card’s analysis to the Court, so the predictions tested below command professional endorsement and are not simply one paid expert’s judgment.

Post-SFFA Results

Data

I assembled enrollment records for sixty-three selective colleges and universities from two sources. The sixty-three are the union of the forty-seven institutions in the 2026 US News top-25 National University and top-25 National Liberal Arts College lists with the forty-nine litigation participants examined above (Harvard, the fifteen universities, and the thirty-three amici); the two groups share thirty-three members. The three federal service academies appear in the liberal arts ranking but are excluded throughout: their admissions run through congressional nomination and service commitments, and the Naval Academy publishes no Common Data Set at all. The first source is CDS item B2, which reports first-time first-year enrollment by racial and ethnic category. I collected every publicly available CDS filing for each institution from 1998-99 through 2025-26, extracting the B2 tables from PDF, spreadsheet, and web formats. The second is the IPEDS Fall Enrollment component for 2008 through 2024, which reports the same categories under the same federal definitions. For any institution-year covered by both sources, the IPEDS record is used, since its uniform structure eliminates the parsing errors that school-specific PDF layouts occasionally introduce. CDS filings supply the years outside IPEDS coverage, most importantly fall 2025, for which fifty-one of the sixty-three institutions had published a usable filing at the time of writing (thirty-nine of them among

the forty-seven top-ranked institutions, the count relevant to the cohort figures below). All statistics below refer to first-time first-year students.

Two definitions recur. A “US” share divides by total first-year enrollment net of nonresident students, who appear on a separate B2 line and receive no racial classification in these data. A “whole-class” share divides by total first-year enrollment. Federal race categories follow the 2010 IPEDS rules. Hispanic students of any race are reported as Hispanic, non-Hispanic students reporting two or more races are reported in a dedicated multiracial category, and the Black line therefore contains only single-race, non-Hispanic Black students. These rules differ substantially from the classification underlying Card’s figures, a difference quantified below.

Harvard

Commensurability

The three restrictions described in the forecasts section mean that Card’s 14 percent corresponds to no number in a public filing. The federal side of the comparison has its own conventions. A CDS filing counts enrolled students, roughly 1,600 in Harvard’s case, against the roughly 2,000 admitted. It reports international students on a separate line of the same table rather than excluding them. And it applies the federal race rules, under which Hispanic students of any race are reported as Hispanic and non-Hispanic multiracial students occupy a dedicated category, so the single-race Black line is systematically narrower than Card’s Black count. Matriculation rates do vary somewhat by race, with Black admits enrolling at moderately lower rates than White or Asian admits according to the trial record (*SFFA v. Harvard*, 397 F. Supp. 3d at 155-56), but the magnitude is small relative to the classification wedge, and I treat the combined gap as a single conversion to be estimated rather than decomposed.

The estimation exploits the fact that both metrics can be observed for the identical cohort, the one cohort for which this is possible. Card’s baseline describes students admitted in the spring of 2015. Those who enrolled constitute the fall 2015 entering class, which appears in Harvard’s CDS 2015-16 filing as 109 single-race Black first-years among 1,441 US first-years, or 7.56 percent. The ratio of the federal figure to the expert-report figure, computed on the underlying counts (109/1,441 divided by 234/1,679), is 0.543, and I use 0.54 below. Throughout the paper, shares are displayed to one decimal and proportional changes to the nearest percent, and all calculations use unrounded values.

A prediction stated in Card’s units is converted to the federal metric by multiplication by this factor, so the simulated race-blind share of 6 percent corresponds to 3.3 percent on a CDS filing. This converted benchmark, rather than the unconverted 6 percent, is the quantity against which post-ruling filings should be compared.

The conversion factor bundles the multiracial and Hispanic reassignments, the admit-to-enrollee step, and the domestic-scope adjustment, all measured on the fall 2015 cohort, and may have drifted since. National rates of multiracial identification have risen since then, which would push

the current factor below 0.54 and the converted benchmark below 3.3 percent. Nondisclosure of race has also risen, which depresses measured single-race shares in recent filings. Both developments bias the comparison toward finding compliance. Matriculation rates are a third potential source of drift, since post-ruling recruiting or financial aid could have changed the rate at which admitted Black students enroll, but the yield differences documented at trial amounted to a few percentage points against a classification wedge of nearly a factor of two, so movement in this channel is second order. Estimates of no change therefore cannot be attributed to drift in the factor, a point developed further below.

The Post-Ruling Classes

Harvard’s CDS filing for 2025-26 reports 97 Black first-year students in an entering class of 1,673, which is 5.8 percent of the whole class and 6.8 percent of US first-years. Read against the unconverted simulation, a figure of 5.8 percent suggests that Card’s race-blind counterfactual has essentially been realized. Read against the converted benchmark of 3.3 percent, it indicates the opposite. Table 1 assembles the comparison in both metrics, averaging the two post-ruling classes to reduce year-to-year noise, to parallel the 2010-2015 averaging of the baseline.

Table 1: Black share of Harvard’s entering class under the federal (CDS) metric and the expert-report (Card) metric. The CDS metric is the single-race Black share of enrolled US first-years. The conversion factor between metrics is 0.54, calibrated on the Class of 2019, the one cohort observable in both metrics. Card-unit entries other than the calibration cohort are obtained by conversion; the fall 2010-2015 average is a CDS-side quantity only.

	CDS units	Card units
Calibration cohort (Class of 2019, entered fall 2015)	7.6%	13.9%
Fall 2010-2015 average	7.5%	—
Race-blind simulation (Card 2017)	3.3%	6.0%
Post-ruling classes (Classes of 2028-29, avg)	7.5%	13.8%

The entering classes of fall 2024 and fall 2025 carried US Black shares of 8.14 and 6.82 percent respectively, averaging 7.48 percent. The 2010-2015 mean is 7.53 percent. The post-ruling average sits within about a twentieth of a percentage point of the pre-ruling average, and both display as 7.5 percent at the paper’s reporting precision. Converted into Card’s own units, the post-ruling classes correspond to 13.8 percent Black, against the calibration cohort’s 13.9. If the race-blind counterfactual in the expert report is taken at face value, the gap between what a compliant Harvard would report and what Harvard does report exceeds a factor of two.

Two measurement objections require examination. The first concerns nondisclosure. If Black students became disproportionately likely to decline the race question after the ruling, single-race Black shares would fall mechanically. The denominator of the US share includes nondisclosers,

so a withheld identification subtracts from the numerator while leaving the denominator intact, and the bias can only run downward. The direction of this bias runs toward compliance, not away from it, so it cannot generate a spurious finding of no change. Its scale is also limited. Harvard’s unknown-race share averaged 5.3 percent over the 2010-2015 baseline cohorts, reached a low of 2.4 percent in 2023, and averages near 8 percent in the post-ruling classes. Relative to the calibration period, the increase is under three percentage points, and Card’s own sample carried an 8 percent race-missing rate. The second objection concerns drift in the conversion factor, addressed above: plausible drift lowers the converted benchmark and widens, rather than narrows, the measured gap. In summary, the filings contain no evidence of movement toward race-blind admissions.

Post-Ruling Disclosure Practice

The unit ambiguity documented above is not confined to expert reports. Harvard’s own public communications since the ruling have employed a metric distinct from the one in its federal filings. The announcement for the fall 2024 class stated that 14 percent of students identifying a race identified as African American or Black (Harvard Gazette 2024). Two definitional choices produced that figure: race is self-identified without single-race restriction, and the denominator excludes the nondisclosing group, which doubled to 8 percent that same year. The corresponding IPEDS figure for the identical class is 8.1 percent. For the fall 2025 class, the university moved its demographic announcement to late October, when federal reporting obligations come due, and reported 11.5 percent on the same disclosers-only basis (Harvard Crimson 2025), against 6.8 percent of US first-years in its CDS filing. The two sources describe the same students, 1,675 enrolling students in the announcement against 1,673 first-time first-years in the filing, a difference presumably attributable to the timing of the fall census. An institution whose public number reproduces its litigation-era level while its federal number halves that level enjoys considerable interpretive latitude. Where the categories of expert analysis, public communication, and statutory reporting fail to correspond, enrollment outcomes cannot be monitored by inspection, and claims of compliance or of catastrophe can each find a supporting statistic.

The Research Universities

The fifteen universities made no numerical forecast about themselves, but their qualitative commitment is testable. If exclusively race-neutral admissions would undercut the racial diversity these institutions seek, then compliance with the ruling should have produced visible declines in Black enrollment on their own campuses. Table 2 reports Black shares of US first-years, the same metric used for Harvard, over the same pre-period, for each signatory.

Table 2: Black share of first-year US students at the fifteen research universities that filed the Universities Brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025 where both filings exist. Changes are computed on unrounded shares and may differ slightly from values recomputed from the rounded shares shown.

University	Fall 2010-15 avg	Fall 2024-25 avg	Change
Carnegie Mellon	6.0%	3.2%	-47%
Columbia	9.9%	7.2%	-28%
Cornell	6.9%	5.0%	-27%
Johns Hopkins	6.0%	4.4%	-27%
Vanderbilt	9.4%	6.9%	-26%
Duke	10.7%	8.5%	-20%
Dartmouth	7.3%	6.0%	-18%
Princeton	8.5%	8.0%	-7%
Brown	7.8%	7.4%	-5%
Emory	10.3%	11.0%	+7%
Chicago	5.7%	6.9%	+22%
Penn	8.0%	9.9%	+24%
Washington Univ.	5.8%	7.4%	+27%
Yale	7.6%	10.0%	+31%
Caltech	1.6%	6.5%	+310%
All 15 signatories (mean)	7.4%	7.2%	-3%

The group mean moved from 7.4 percent to 7.2 percent, a relative decline of about 3 percent. Six of the fifteen enroll a higher Black share than in the pre-period. No signatory sits at half its baseline, and a single one, Carnegie Mellon, shows a decline exceeding even the 33 percent figure the brief quoted for a milder counterfactual at Harvard. Caltech’s large proportional increase reflects a very low base, from 1.6 to 6.5 percent, and Yale, Washington University, and Penn all enroll between 24 and 31 percent more Black first-years, relative to class size, than they did in the pre-period. If the signatories complied with the ruling, their own filings refute their claim that compliance would visibly reduce their racial diversity.

The Amici Colleges

The amici forecast refers to “the student body” without restriction to domestic students and without a stated racial classification, so I evaluate it in whole-class CDS shares, which require no conversion. Doing so is conservative. International enrollment at these colleges grew from roughly 9 percent of the entering class in the early 2010s to roughly 11 percent after the ruling, mechanically deflating recent whole-class shares relative to older ones. Measured stability therefore understates underlying stability.

Table 3 reports whole-class Black shares for every signatory, ordered by proportional change, together with the group mean. The pre-period matches the Harvard estimation window, the entering classes of fall 2010 through fall 2015. Post-ruling entries reflect fall 2024 alone where no usable 2025-26 filing exists.

Table 3: Whole-class Black share for all thirty-three signatories of the Amherst brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025, or reflects fall 2024 alone where no usable 2025-26 filing exists. Changes are computed on unrounded shares and may differ slightly from values recomputed from the rounded shares shown.

School	Fall 2010-15 avg	Fall 2024-25 avg	Change
Amherst	11.8%	4.3%	-63%
Haverford	6.7%	2.8%	-58%
Vassar	5.3%	2.7%	-48%
Bates	5.2%	3.5%	-33%
Mount Holyoke	6.1%	4.7%	-23%
Williams	7.6%	6.1%	-20%
Barnard	6.8%	5.5%	-20%
Wesleyan	7.1%	5.9%	-17%
Colby	3.6%	3.0%	-15%
Wellesley	5.7%	5.1%	-11%
Hamilton	4.6%	4.0%	-11%
Pomona	6.7%	6.0%	-11%
Oberlin	5.5%	5.4%	-2%
Franklin & Marshall	5.1%	5.1%	0%
Bryn Mawr	5.0%	5.0%	+1%
Bowdoin	5.1%	5.2%	+2%
Smith	5.1%	5.7%	+11%
Swarthmore	6.0%	6.7%	+12%
Davidson	6.7%	7.7%	+15%
Sarah Lawrence	3.8%	4.4%	+17%
Trinity	6.0%	7.4%	+23%
Carleton	3.8%	4.8%	+25%
Middlebury	3.7%	4.7%	+27%
Tufts	3.9%	5.1%	+32%
Clark	4.0%	5.8%	+44%
St. Olaf	2.0%	2.9%	+46%
Bucknell	3.2%	4.7%	+47%
Connecticut College	3.8%	6.0%	+60%
Reed	1.8%	3.1%	+70%
Washington & Lee	2.4%	4.7%	+101%

Table 3: Whole-class Black share for all thirty-three signatories of the Amherst brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025, or reflects fall 2024 alone where no usable 2025-26 filing exists. Changes are computed on unrounded shares and may differ slightly from values recomputed from the rounded shares shown.

School	Fall 2010-15 avg	Fall 2024-25 avg	Change
Union	4.1%	8.5%	+106%
Macalester	2.5%	6.1%	+139%
Hampshire	2.6%	9.5%	+265%
All 33 signatories (mean)	4.9%	5.2%	+6%

Mean Black enrollment across the signatories was 4.9 percent of the entering class during the pre-period, climbed to 5.8 percent in the entering classes of 2020 through 2023, and stands at 5.2 percent in the two post-ruling classes. Relative to the benchmark period, the change is positive. The group mean did not fall at all, let alone by half, so the forecast fails at the level of the group before any school-level accounting. Because some institutions lack a usable 2025-26 filing, the post-period mixes one- and two-year averages. Of the thirty-three, twenty-six have filings for both post-ruling years, and the mean over that balanced panel is 5.1%, similar to the full-group figure.

Interpreting the brief’s 2.1 percent endpoint as an absolute level would misapply it, since that figure describes Bowen and Bok’s 1989 cohort rather than these colleges, whose own pre-period mean was 4.9 percent. The transferable content of the forecast is proportional. Applied to each school’s own baseline, even the mildest version implies a post-ruling share no greater than half the pre-ruling share. Two signatories out of thirty-three satisfy this criterion. Amherst’s post-ruling average is 0.37 of its baseline, and Haverford’s is 0.42, a position produced by its fall 2025 filing, which reports eight Black first-year students in a class of 397. The next closest are Vassar at 0.52 and Bates at 0.67, and no other signatory falls below two thirds of its baseline. Because the choice of pre-period is not dictated by the brief, I repeated the calculation for four alternative windows, including the complete set of filings that were public on the day the brief was signed. The group mean and the implied forecast interval are insensitive to the choice, and the count of signatories below half their baseline is two under three of the windows and one under the fourth.

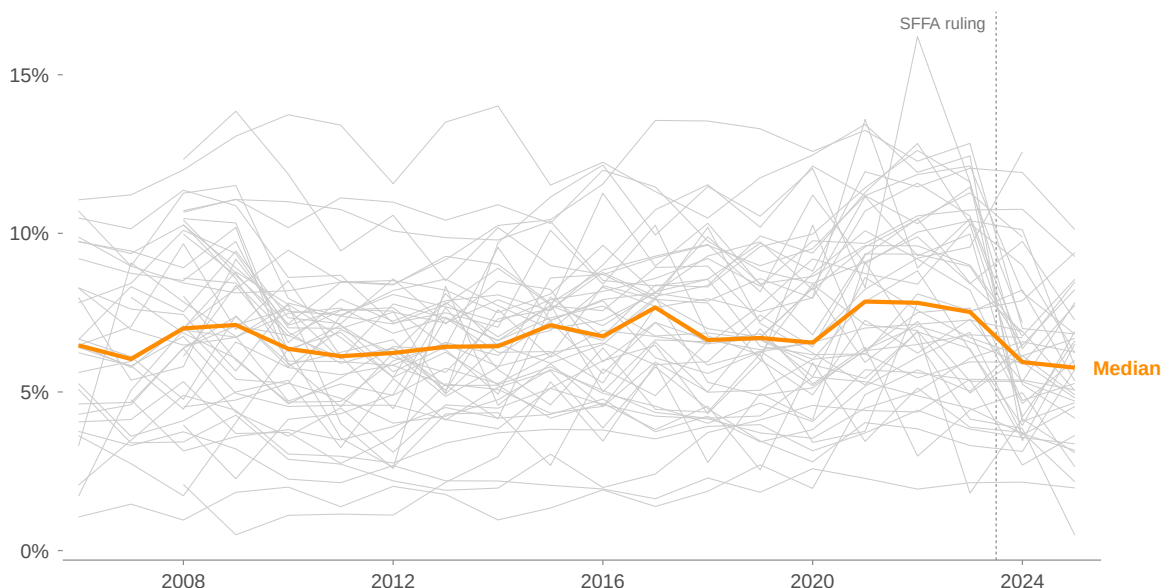
The Top-Ranked Cohort

Extending the analysis to the union of the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges, less the three service academies, brings the total to forty-seven institutions. Unlike the three groups examined so far, these forty-seven never acted collectively in the litigation, and several filed nothing at all. The question here is not whether a

specific forecast held but whether the patterns documented for the litigation participants extend across the market segment they occupy. Figure 1 plots the US Black share of each school's entering class from fall 2006 through fall 2025 together with the cross-sectional median.

Figure 1: US Black share of the entering class at the forty-seven institutions in the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges (service academies excluded), fall 2006 through fall 2025. Grey lines are individual institutions, the orange line is the cross-sectional median, and the dashed vertical line marks the SFFA ruling. The fall 2025 median is computed over the thirty-nine institutions with usable filings. Sources: IPEDS Fall Enrollment and CDS item B2.

Black Share of First-Year US Students, Top-Ranked Institutions



The median share occupied a band between 6.0 and 7.7 percent from 2006 through 2019, rose to a maximum of 7.9 percent in fall 2021, and registered 5.9 and 5.8 percent in the two post-ruling cycles. The net movement from the center of the long-run band is under one percentage point, a fifth or less of the three-and-a-half to five points that declines of 50 to 70 percent imply on a base near 7 percent. Selection into fall 2025 disclosure does not manufacture this stability. The eight cohort schools without a usable 2025 filing entered fall 2024 with a median Black share of 6.8 percent, against 5.4 percent for the thirty-nine that later filed, so the missing schools, if anything, depress the observed 2025 median. The full-panel figure will likely be higher.

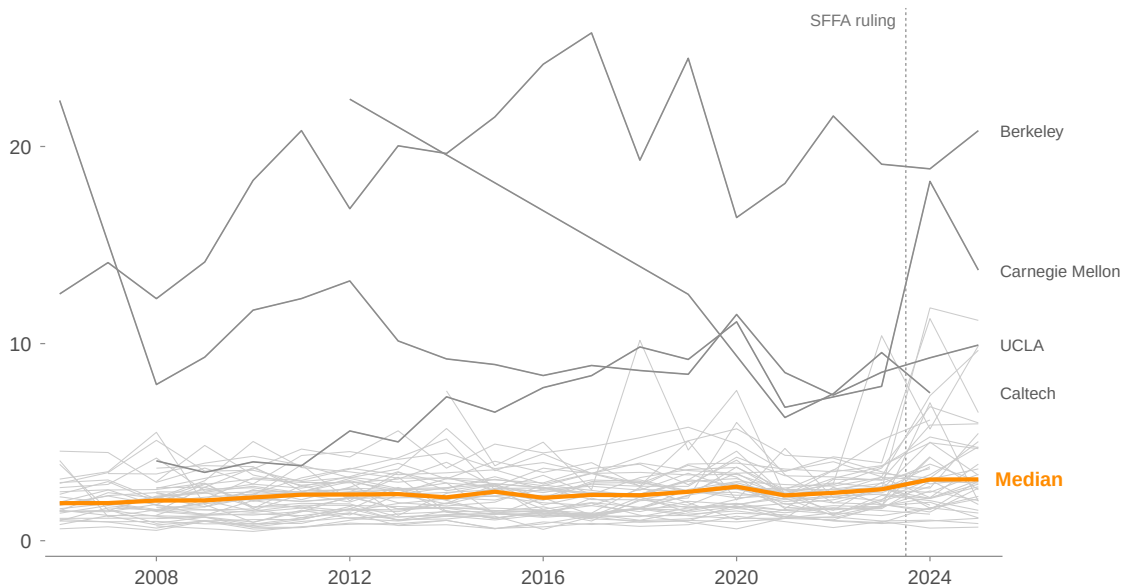
The 2020-2022 increase identifies the presence of discretionary control. Between the fall 2020 and fall 2022 entering classes, the median Black share rose more than a full percentage point, with relative increases above 20 percent at many institutions, over an interval in which the academic quality and racial composition of the national applicant pool were essentially static. (The College Board's annual Total Group reports for these cohorts show group means and

shares nearly unchanged; College Board 2020, 2021, 2022.) The proximate cause was not a change in applicant characteristics but an institutional response to the events of 2020. The episode establishes that these institutions possessed, and exercised, the capacity to shift Black enrollment by large amounts within one to two cycles. The relevant question for the post-ruling period is whether that capacity was surrendered or redirected.

Figure 2 examines the ratio of Asian to Black first-year US students, a statistic chosen for two properties. It requires no denominator, being a quotient of two counts from adjacent lines of the same filing, and it is therefore immune to the international-share and nondisclosure issues discussed above so long as nondisclosure is not strongly race-selective. The litigation context also makes it the natural summary measure, since the plaintiffs were Asian American and the preferences at issue operated most heavily between the Asian and Black margins.

Figure 2: Ratio of Asian to Black first-year US students at the same forty-seven institutions. Institution-years with fewer than five Black first-years are excluded. Grey lines are individual institutions, the orange line is the cross-sectional median, and the dashed vertical line marks the SFFA ruling. The four labeled institutions, drawn in darker grey, are Berkeley and UCLA, whose admissions California's Proposition 209 (adopted 1996) has bound since the fall 1998 entering class, and two STEM-intensive schools, Caltech and Carnegie Mellon. Sources: IPEDS Fall Enrollment and CDS item B2.

Asian / Black Ratio of First-Year US Students, Top-Ranked Institutions



The cohort median drifted from approximately 1.9 in 2006 to 2.6 by 2023 and averages 3.1 across the two post-ruling cycles. Berkeley and UCLA, the California institutions bound by Proposition 209, together with the STEM-intensive schools whose applicant pools skew heavily Asian, occupy ratios between 6 and 13 at the median and up to 25.8 in Berkeley's case (2,396

Asian against 93 Black first-year US students in 2017). California’s applicant pool contains proportionally more Asian and fewer Black students than the national pool serving the private institutions, and the University of California has admitted test-blind since 2021, so these values mark the general region rather than the exact level that race-blind selection would imply elsewhere. The post-ruling movement of the cohort median, roughly half a point, covers a small fraction of the interval separating it from that region.

Individual trajectories within the cohort followed a common sequence. The first post-ruling cycle produced large single-school deviations, with Stanford rising to 7.4 against a historical range of 2 to 3, Cornell to 6.8, Amherst to 7.0, Brown to 5.0, and Johns Hopkins to 11.8. In the second cycle most of these reverted, Amherst to 2.0, Brown to 3.3, and Cornell to 6.0, while Stanford continued to 9.7 and Johns Hopkins remained at 11.2. The modal institution experimented with a substantially higher ratio for one cycle and then returned to its historical position.

Two Institutional Trajectories

The aggregate stability documented above conceals two exceptions, one at each end of the range of institutional response.

Amherst’s forecast came true, for exactly one cycle. The brief’s one institution-specific estimate, drawn from the college’s internal planning, concerned combined Native American, Black, and Hispanic enrollment. That combined share averaged 25.2 percent of Amherst’s entering class over the pre-period and stood at 23.2 percent in fall 2023, the final cohort admitted under racial preferences. The fall 2024 class registered 13.5 percent, or 0.54 of baseline, with the Black component alone falling from an 11.8 percent baseline to 2.9 percent. The college’s public posture treated the outcome as vindication. It announced that 3 percent of the Class of 2028 identified as Black under federal reporting rules, against 11 percent the year before, with domestic students of color falling from 47 to 38 percent of the class (Amherst Student 2024a). National coverage presented the numbers as the realization of the college’s own brief. President Michael Elliott called the outcome disappointing and warned that the change could “diminish the sense of belonging” of enrolled students (Amherst Student 2024a). The campus discussion also reproduced, in miniature, the measurement problem documented for Harvard above: under self-identification the same class was 9 percent Black, and under the federal single-race rules it was 3 percent, a gap the student newspaper examined at length (Amherst Student 2024b). The next cycle reversed the outcome. The college expanded digital and in-person recruiting, joined the STARS rural-recruitment network, admitted a record share of first-generation students, and released its class data a month later than usual (Amherst College 2025; Amherst Student 2025). The combined underrepresented share returned to 21.2 percent, the Black share to 5.8 percent, and the Asian-to-Black ratio traced the same arc, rising to 7.0 in the first post-ruling cycle and returning to 2.0 in the second. The institution that treated the ruling as binding matched its own forecast for exactly one cycle and then went back toward the typical racial composition.

Johns Hopkins, by contrast, has presented itself as complying, and its filings support the presentation. Its announced Class of 2028 figures showed underrepresented enrollment falling from 37.0 to 17.6 percent of the class, with the Black share dropping from 13.8 to 5.7 percent in the university's self-identified categories (JHU News-Letter 2024). President Ronald Daniels responded that the university would pursue diversity "while fully complying with the Supreme Court's restriction on the consideration of race in admissions" (Daniels 2024). The second cycle extended the movement instead of reversing it. Local reporting found Asian students rising from 26 percent of the entering class in 2023 to 41 percent in 2024 and 45 percent in 2025, a trajectory without parallel among peer institutions, and the university's comment was that it "complies with federal law and does not consider race or ethnicity in admissions" (Baltimore Banner 2026). In my metrics, Hopkins's Black share of US first-years fell from a 6.0 percent pre-period mean to 4.4 percent, and its Asian-to-Black ratio registered 11.8 and 11.2 in the two post-ruling cycles, leaving it, with Stanford, one of only two institutions still outside its historical range in the second year. Where a school actually stopped considering race, the movements were large and immediate, and at Hopkins they persisted, above all in the Asian share. Nothing similar appears at the forty-five institutions other than Hopkins and Stanford.

The Test-Taking Population

In the absence of racial preferences, the racial composition of an elite entering class should, all else equal, resemble the racial composition of the students who meet elite academic standards. National testing data describe that population. The College Board's summary of the 2,004,965 SAT takers in the high school graduating class of 2025 reports mean total scores of 1,229 among the 217,459 Asian test-takers and 904 among the 250,887 Black test-takers, a difference exceeding 300 points against group standard deviations near 200 (196 and 212 for the Black and Asian distributions, estimated from the report's score-band tables) (College Board 2025). Distributions separated by that distance thin at very different rates in the upper tail. In the 1400-to-1600 band, approximately the range from which the institutions studied here draw most of their admits, the report counts 56,539 Asian, 52,079 White, 10,752 Hispanic, and 2,509 Black test-takers (College Board 2025, score-distribution tables by race and ethnicity), an Asian-to-Black ratio of 22.5 between two groups of comparable overall size. No party to the litigation proposed admission by test score alone, and holistic review weighs more than scores, so the top-band ratio is a rough guide rather than a point prediction. But any selection process that weights academic credentials heavily and applies no racial offsets would land far closer to that guide than to the enrolled ratio of 2 to 3, which is little changed after *SFFA* and is not the output of such a process.

Conclusion

Two admissions cycles after *SFFA v. Harvard*, the enrollment records of the institutions most affected by the decision show the following:

- Among the 33 colleges that jointly forecast declines of 50 to 70 percent, mean Black share is marginally higher than in the corresponding benchmark period, and thirty-one of them never approached the mildest version of their own forecast.
- At the 15 research universities that assured the Court that race-neutral admissions would undercut their diversity, the mean Black share of US first-years moved from 7.4 to 7.2 percent, and six signatories sit above their baselines.
- Across the 47 top-ranked institutions, the ratio of Asian to Black first-years, the summary statistic most relevant to the underlying litigation and the one least vulnerable to measurement objections, moved from roughly 2.6 to roughly 3.1 against race-blind benchmarks two to eight times higher.
- Harvard's Black enrollment share, expressed in any internally consistent metric, equals its level in the years when it used the admissions system the Supreme Court found unlawful.

The parsimonious reading of this evidence is that elite institutions have not meaningfully changed the admissions policies the ruling was intended to end. That characterization is an interpretation of the pattern, not a finding the data compel. The data cannot identify the mechanism. Whether present practice reflects consideration of race as such, which the Court prohibited, or of experiential factors correlated with race, which the Court permitted, is not answerable from aggregate filings, and I do not claim otherwise.

What the analysis does establish is that the quantitative expertise deployed in the litigation has functioned, after the fact, to obscure the question. The most cited prediction in the case was stated in units that no public statistic reports, by an expert whose analysis never faced peer review but was certified as sound to the Supreme Court by sixteen economists including three Nobel laureates, and any comparison of it against filings computed under incompatible definitions generates an appearance of compliance that a factor-of-two conversion dissolves.

Economists who supply litigation estimates in nonpublic units might reasonably be expected to publish the mapping to public categories at the same time. Absent such mappings, predictions of this kind are unfalsifiable in practice, whatever their merits in principle, and the institutions they concern are the primary beneficiaries of the ambiguity.

Data and Code

Data and code sufficient to reproduce every number, table, and figure in this paper, including the extraction pipeline that assembles the Common Data Set and IPEDS filings for every school in the analysis, are available at <https://github.com/davidkane9/after-sffa>.

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